

HOUSE BILL 1004

By Hakeem

AN ACT to amend Tennessee Code Annotated, Title 37
and Title 49, relative to after school programs.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 7, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "County juvenile offense rate" means the number of crimes committed
by individuals who are between ten (10) and seventeen (17) years of age, both
inclusive, in a given county, for every one thousand (1,000) residents of the
county, as published by the Tennessee bureau of investigation;

(2) "Department" means the department of education;

(3) "Eligible LEA" means a local education agency that operates or
serves as the charter authorizer for at least one (1) public school located in a
county for which the county juvenile offense rate is at least ten percent (10%)
higher than the statewide juvenile offense rate;

(4) "Eligible nonprofit organization" means a 501(c)(3) organization
exempt from federal income taxation under § 501(a) of the Internal Revenue
Code (26 U.S.C. § 501(a)) that operates after school programs;

(5) "Eligible student" means a student enrolled in a public school in any
of the grades kindergarten through twelve (K-12);

(6) "Public school" means any school in this state that serves students in
any of the grades kindergarten through twelve (K-12) and that is operated as part

of a local education agency, by this state with public funds, or pursuant to a charter agreement, as defined in § 49-13-104; and

(7) "Statewide juvenile offense rate" means the number of crimes committed by individuals who are between ten (10) and seventeen (17) years of age, both inclusive, in this state, for every one thousand (1,000) residents of this state, as published by the Tennessee bureau of investigation.

(b) Subject to appropriation, the department shall award grants to eligible LEAs that have submitted a grant application approved by the department to enable such LEAs to provide after school programs for eligible students enrolled in the eligible LEA.

(c) An eligible LEA seeking a grant under this section must submit an application to the department at such time, and in such manner, as the department requires. Each grant application must, at a minimum, include the following:

(1) The county juvenile offense rate for the most recent fiscal year for which data is available for the county in which at least one (1) public school is located;

(2) An assurance that the eligible LEA will directly provide after school programs using grant funds or will partner with an eligible nonprofit organization for that organization to provide after school programs using grant funds; and

(3) Details regarding the activities and frequency of the after school programs that will be provided using grant funds received under this section.

(d)

(1) An eligible LEA that receives a grant must use the grant funds to operate after school programs for eligible students, which may include:

(A) Expanding existing after school programs for eligible students;

(B) Providing new after school programs for eligible students; or

(C) Partnering with an eligible nonprofit organization for the organization to operate after school programs for eligible students.

(2) After school programs provided using grant funds received pursuant to this section must include educational activities and programming.

(3) An LEA that receives a grant pursuant to this section may apply to renew the grant in a subsequent year. The department shall, subject to available funds, award a grant to an LEA that received a grant in the prior year, even if the LEA is no longer an eligible LEA because the county juvenile offense rate for the county in which at least one (1) public school is located is not at least ten percent (10%) higher than the statewide juvenile offense rate.

(e) From the total amount of grant funds available to the department for purposes of this section, the department shall allocate to each eligible LEA with a department-approved application, a grant in an amount that bears the same relationship to the total amount of grant funds available as the number of eligible students who will be served by the eligible LEA pursuant to this section bears to the total number of eligible students who will be served by all eligible LEAs pursuant to this section.

(f) Each eligible LEA that receives a grant under this section must submit an annual report to the committee of the house of representatives with jurisdiction over after school programs for students in any of the grades kindergarten through twelve (K-12) and the education committee of the senate describing:

(1) The number of public schools served by an after school program established or maintained by the eligible LEA using grant funds;

(2) The number of eligible students served at each after school program established or maintained by the eligible LEA using grant funds; and

(3) The general successes and vulnerabilities of the after school programs established or maintained by the eligible LEA using grant funds.

SECTION 2. For purposes of awarding grants to eligible LEAs, this act takes effect July 1, 2025, the public welfare requiring it. For all other purposes, this act takes effect upon becoming a law, the public welfare requiring it.